Board Member Requirements and Meeting Guidelines

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Board Member Requirements

All Pine Valley Local Administration District board members are appointed by the Washington County Commission for a term of four years. To be considered for a position on the board, person(s) must be a U.S. citizen and be a registered voter whose primary residence is located within the Pine Valley boundaries, as defined by Washington County. Board members do not receive any compensation, but may receive reimbursement of costs to attend training or represent the board if the distance is more than 50 miles.

When appointed, Board members must

- Complete the “Special Service and Special Service District Board Member Training” located on the State Auditor's website (training.auditor.utah.gov) or in person if it’s available, within one year of appointment to office and within one year of each reappointment to office. A certificate of completion must be submitted to the Records Officer within 30 days of completion.
- Receive and familiarize themselves with the current Policies and Procedures.

Annually, Board members must:

- Complete the “Open and Public Meetings Act” training, available on the State Auditors website (training.auditor.utah.gov) or in person if it’s available. A certificate of completion must be submitted to the Records Officer within 30 days of completion.
- Complete the “Conflict of Interest” disclosure form and submit it to the Records Officer.
- Complete the “Code of Ethics Pledge” form and submit it to the Records Officer.

It is recommended that these items be completed in January of each year.

Each member shall serve until a successor is appointed, unless the member is removed from office or resigns or otherwise leaves office.

Meeting Guidelines

Members of the public are welcome and invited to attend PVLAD board meetings, and will be admitted to the Pine Valley Fire Station at 680 E Main, or at such other locations and virtually, as may be identified in any applicable Notice.

1. Meeting Schedule

   A. Regular Meetings. The Board holds regular Board Meetings each month to approve District business items. Generally, regular meetings will be held on the second Wednesday of each month. The Board may cancel any meeting for any reason approved by the Chair.

   B. Special Meetings. The Chair or two Board Members may order the convening of a special meeting of the Board. A special meeting must be noticed in compliance with the Utah Open and Public Meetings Act.

   C. One or more board members may attend electronically, as outlined in the Electronic Meeting Policy.

D. The Clerk or Treasurer (as designated by the Board Chair) is responsible for posting agendas and providing notice of all Board meetings, as provided by State Law.

2. Guiding Principles
   A. The public has the right to participate in discussions at the appropriate time, when directed by the Chair, as described in the Public Comments section.
   B. Everyone has the right to attend all public meetings, but will treat others with respect and not interrupt unless it is an emergency.
   C. Only one agenda item may be discussed at a time.
   D. If a Board Member has a conflict of interest, that Board Member must declare that conflict and excuse him/herself from the discussion. The conflicted Board Member may not lobby, vote, or address the matter with Board Members or staff.
   E. Although not required, it is recommended that any non-routine items be placed on the Board agenda as a discussion only item prior to being placed on a subsequent agenda as an action item.

3. Agendas
   A. The PVLAD Chair is responsible for creating a written agenda for each Board meeting, with assistance from the Clerk and Treasurer.
   B. items submitted for Board action may include background materials appropriate to the agenda item.
   C. Requests from Board members, the Clerk and Treasurer may be added only with the approval of the Chair. Requests should be delivered to the Chair at least five days before the scheduled meeting.
   D. If the Board Chair does not approve, the individual wanting the item on the agenda may request a vote by the Board to place the item on the agenda. If a majority vote of the Board present agrees, the item will be placed on the next agenda.

Public Comments

Verbal and written public comments are welcome at all Public Hearings. Written comments must be received within 14 days of the Public Hearing. For Public Meetings, verbal public comments will be allowed and limited at the discretion of the Chair. Total time for comments will not exceed twenty (20) minutes, and each individual may not exceed three minutes. These times may be extended, but only upon a majority vote of the Board for that specific meeting.

The order of comments shall be at the sole discretion of the presiding officer. Persons who exceed the time or are otherwise disorderly, including Board Members, may be expelled by the Board upon a two thirds vote, as provided in Utah Code Ann. §10-3-608.

Closed Meetings

Utah Law requires that every meeting of a legislative body remain open to the public unless it is lawfully closed. Closed meetings may only be held for the following purposes:

- The character, professional competence, or physical or mental health of an individual.
- Collective bargaining issues.
- Pending or reasonably imminent litigation.
- Purchase, exchange, and lease of real property, including any form of a water right or water shares, if such discussion discloses the value or prevents the district from completing a transaction on the best possible terms.

- Sale of real property, including any form of a water right or water shares, if such discussion discloses the value or prevents the district from completing a transaction on the best possible terms, and the entity previously gave public notice the property would be offered for sale and the sales terms were publicly disclosed before the public body approves the sale.
- Deployment of security personnel, devices, or systems.
- Investigative proceedings regarding allegations of criminal misconduct. • Information that is required to be maintained as private or protected by the Utah Procurement Code (Utah Code 63G-6a), including trade secrets. • Considering a loan application, if public discussion of the loan application would disclose nonpublic personal financial information, nonpublic trade secrets or nonpublic business information that would reasonably be expected to result in unfair competitive injury to the person submitting the information.
- Any other reason that may be detailed in section Utah Code Ann. § 52-4-205 (as amended)

In a closed meeting, the board may not:
Interview a person applying to fill an elected position;

- Discuss filling a midterm vacancy or temporary absence; or
- Discuss the character, professional competence, or physical or mental health of the person whose name was submitted for consideration to fill a midterm vacancy or temporary absence.
- Approve any ordinance, resolution, rule, regulation, contract, or appointment • Take any vote, except to end the closed portion of the meeting and return to an open meeting.

The request to hold a closed meeting must be stated as an agenda item on a publicly noticed agenda. It is recommended that it be at or near the end of the public meeting. The process is as follows:

- During the open meeting, one of the board members must make a motion to close the meeting and disclose the purpose as allowed above. A vote of at least two-thirds of the members is required to close the meeting. The minutes for the open meeting must reflect the reasons for closing the meeting, the location of the closed meeting, and the vote, by name, of each member who voted for or against the motion to close the meeting.

- Any members of the public remaining are politely asked to exit so the board members can discuss the matter privately.

- A new recording for the closed session is started. The chair will announce the date, time, and place of the meeting, the names of members present, and the names of any others present (i.e. any person specifically invited by the board to attend and participate). The discussion during the closed session must be limited to the subject matter for which the meeting was closed. If the discussion wanders into other topics, the chair (or any member) should remind others to refrain from discussing other matters. No action may be taken during the closed session.

- A board member makes a motion to end the closed meeting. The recording is ended. The recording of the closed session is kept separate from the recording of the open meeting. The closed meeting audio is not published or disclosed to anyone unless there is a court order or a legislative auditor's request.

Board, Clerk and Treasurer Responsibilities
The board must appoint a Chair, Clerk, Treasurer and Records Officer. A Vice-Chair position may be put in place at the discretion of the Chair and selected with a majority vote of the board. The Chair, Clerk and

Treasurer positions may not be held by the same person. The Chair and Records Officer must be members of the board. The Clerk and Treasurer may be a board member or contractor.

A. Chair

1. Is the Presiding Officer and acts as Chair at Board meetings. In the absence or incapacity of the Chair, another Board Member may serve as Presiding Officer. The interim Presiding Officer maintains his/her ability to vote as a Board Member.
2. Works with the Clerk or Treasurer to determine agenda
3. Leads Bank reconciliation quarterly. Chair may designate this to a board member.

B. Vice-Chair

1. Serves as back-up for Chair
2. Serves as Purchasing Agent

C. Clerk

1. Maintains financial records
2. Attends and presents a detailed financial report to the board at monthly public meeting
3. Prepares checks after determining that the claim meets one or more of the following:
    a) Was authorized by the board or Fire Chief
    b) Does not over expend the budget
    c) Was approved in advance by the board
4. Ensures accurate invoicing for annual assessment fees
    a) Maintains database for annual assessment fees
    b) Works with Title companies as properties are sold
    c) Prepares and mails annual assessment invoices
5. Applies funds to accounting system after deposits
6. Working with Treasurer and Chair (or Chair's board member designee), completes Local Government Self-Evaluation Form quarterly.
7. Is bonded as required by state law.
8. All ancillary and associated services as may be reasonably necessary or advisable to complement and complete the services described in this section

C. Treasurer

1. Publicly notices the meeting as required by state law.
2. Records and takes minutes of the meeting and posts them to the State website.
3. Coordinates Overlay Zone requests and places on agenda, as applicable.
4. Signs checks after determining sufficient funds are available
5. Deposits and invests all money in accordance with State Money Management Act (Utah Code 51-7)
6. Receives all public funds and money payable to the PVFD and PVLAD.
7. Keeps an accurate, detailed account of all money received.
8. Issues receipts for money received.
9. Working with Clerk and Chair (or Chair's board member designee), completes Local Government Self-Evaluation Form quarterly.
10. Is bonded as required by state law.

11. All ancillary and associated services as may be reasonably necessary or advisable to complement and complete the services described in this section

D. Records Officer
    1. Completes the Government Records and Management training annually. Training is available on the State Auditor's website.
    2. Ensures retention of records covered in the Government Records policy
    3. Serves as the primary contact for all GRAMA requests
    4. Maintains copies of required board member training certificates and annual signed copies of Code of Ethics and Disclosure forms from board members and fire department officers.

The Board will operate with a simplified Robert's Rules of Order, as follows:

A. Board members may speak after being recognized by the Chair and may make motions that propose Board action.
B. A motion may be discussed and voted upon only if it is seconded by another Board member.
C. Board members will limit their comments to the subject matter or motion currently being considered by the Board.
D. Although discouraged, the Chair may at his or her discretion allow members of the public to participate in the discussion, provided the time and manner conform to the requirements outlined herein.
E. A motion may be amended by any Board member. A Board member may propose an amendment to the motion by substitution.
F. When the Chair has confirmed there is no further discussion, the Chair can call for the vote on the matter. Any Board Member may also call for the vote, but only after each Board Member has had an opportunity to speak on the item.
G. Unless otherwise specified by applicable law or ordinance, a motion passes if a majority of Board members present vote in favor.
H. Unless prohibited by law, each Board Member is to vote when present.
I. A vote may be taken only when there is a quorum of not less than three Board members present (either in person or virtually) at a properly noticed meeting.
J. No vote may be taken unless and until each board member has had the option to speak and there is a motion by any Board Member and a second of the motion by any other Board member. The Chair may not make a motion or second a motion unless there are fewer than three Board Members present. Once there is a motion and a second on any duly noticed agenda item, a vote may be had to either approve or not approve the motion. No motion shall be passed or become effective, without an affirmative majority.
K. Persons (either board members or public) demonstrating rude, boisterous, or profane behavior will be called to order by the Chair. When faced with continued rude, boisterous, or profane behavior, any member of the Board may do any of the following: motion for a recess, motion to remove such disorderly person(s) from the meeting, motion to adjourn the meeting, or take such other appropriate action as permitted by law.